

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

TO

**NOTICE OF MOTION AND MOTION
FOR LEAVE
TO FILE THIRD AMENDED
COMPLAINT**

Date:

Time:

Dept.:

Judge:

Reservation No.:

ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that upon this Court's grant of Plaintiff's pending Motion for Leave to File Second Amended Complaint (hearing April 30, 2026), and upon subsequent identification of any Round D pleading defects requiring further amendment, Plaintiff will apply for an order shortening time to hear this Motion for Leave to File Third Amended Complaint. This motion is served contingently as supporting papers to Plaintiff's ex parte stay application and as notice of Plaintiff's two-layer cure strategy. Hearing date to be set on OST following SAC ruling.

GROUND FOR MOTION

This Motion is made on the following grounds:

1. LIBERAL AMENDMENT POLICY

California courts have a strong policy favoring resolution of disputes on their merits. Code of Civil Procedure § 473 grants courts broad discretion to allow amendments to pleadings, and that discretion should be exercised liberally in favor of amendments. Nestle v. City of Santa Monica (1972) 6 Cal.3d 920, 939.

2. RESPONSE TO DEFENSE CCP § 436 MOTION — SPECIFIC CURE OF SEVEN OBJECTIONS

The proposed Third Amended Complaint specifically cures the seven objections raised in Defendant's April 22, 2026 Motion to Strike under CCP § 436:

Defense Objection	TAC Cure Section
(1) <u>Trope</u> — pro-per fees	Section III: Deletion; <u>Prentice</u> damages element
(2) Oppression / malice	Section IV: <u>Lazar</u> particulars; deny-delay-defend pattern
(3) Fraud particularity	Section IV: Sarah Rash; Claim No. 1004-09-1054; Feb. 25, 2021
(4) Litigation privilege / <u>Ribas</u>	Section II: Pre-litigation carveout; non-communicative conduct; <u>Ribas</u> distinction
(5) Standing / <u>Shaolian</u>	Section I.5: Direct-addressee theory
(6) Collateral estoppel / § 1032	Section VI: Primary rights; express PI disclaimer
(7) Investigation standard	Section VII: Title 10 CCR § 2695.7

3. NO PREJUDICE TO DEFENDANT

Defendant will not be prejudiced by the proposed amendments:

- The TAC does not add any new parties.
- The TAC does not assert fundamentally new theories of liability—fraud, UCL, and bad faith were already alleged. The TAC pleads these theories with greater specificity.
- No additional discovery should be necessary.
- The case is at an early stage.

4. GOOD FAITH AMENDMENT

The proposed amendments are made in good faith to address objections raised in Defendant’s CCP § 436 Motion to Strike. Plaintiff has diligently responded to the motion by preparing curative amendments.

5. MERITORIOUS CLAIMS SUPPORTED BY RECORD

The proposed Third Amended Complaint states meritorious claims supported by the certified record, including:

- The February 25, 2021 denial letter (Claim No. 1004-09-1054, signed by Sarah Rash);
- The three-anchor delayed-discovery sequence (Jan. 17, 2025 / Feb. 18, 2025 / Apr. 16, 2025);
- The “deny-delay-defend” institutional pattern documented by the underlying record.

SUPPORTING PAPERS

This Motion is based upon:

- This Notice of Motion and Motion;
 - The accompanying Memorandum of Points and Authorities;
 - The Declaration of Franciscus Dylan Rosario;
 - The Request for Judicial Notice;
 - The proposed Third Amended Complaint (lodged herewith);
 - The Cure Matrix — Defense Objection Map;
 - All records and files in this action; and
 - Such other evidence and argument as may be presented at the hearing.
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1 **RELIEF REQUESTED**

2 Plaintiff respectfully requests that this Court enter an order:

- 3 1. Granting Plaintiff leave to file the Third Amended Complaint in the form lodged with this
4 motion;
5 2. Deeming the Third Amended Complaint filed and served as of the date of the order;
6 3. Mooting Defendant's pending Motion to Strike the Second Amended Complaint; and
7 4. Granting such other relief as the Court deems just and proper.

8 _____
9 **Dated:** _____

10 **FRANCISCUS DYLAN ROSARIO**

11 Plaintiff, In Pro Per

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13 Rohnert Park, CA 94928

14 Tel: 650.488.7510

15 Email: soltrinox@gmail.com

Dated: April 22, 2026



FRANCISCUS DYLAN ROSARIO

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